LAWS2100 Jurisprudence
LAWS8005 Theories of Law and Justice

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Week 6 – Legal Realism and Critical Legal Studies



Legal Realism

American Legal Realism

- Oliver Wendell Holmes Jr. (1841 – 1935)
- Roscoe Pound (1870 – 1964)
- Herman Oliphant (1884 – 1939)
- Jerome Frank (1889 – 1957)
- Karl Llewellyn (1893 – 1962)
- Felix Cohen (1907 – 1953)

Scandinavian Legal Realism

- Alex Hagerstrom (1868 – 1939)
- A.V. Lundstedt (1882 – 1955)
- Karl Olivecrona (1897 – 1980)
- Alf Ross (1899 – 1979)

Oliver Wendell Holmes Jr. (1841-1935)

- *The Common Law* (1881): “The life of the law has not been logic; it has been experience”
  - Law is not seen as a set of timeless logical principles but a product of historical experience, social needs, and public policy
- ‘The Path of the Law’ (1897)
  - Many see this essay as foundational to American legal realism.
  - It urges lawyers to view law through the eyes of the "bad man" who cares only about the practical consequences of breaking rules, rather than through moral or logical abstractions
  - It also introduced the famous “prediction theory” of law (law is essentially a prediction of what courts will do in fact)

Alf Ross (1899 – 1979)

Towards a Realistic Jurisprudence: A Criticism of the Dualism in Law (1946)
A Textbook in International Law (1947)
Constitution of the United Nations (1951)
Why Democracy? (1952)
"Tû-Tû", *Harvard Law Review* (1957)
"Definition in Legal Language", *Logique et Analyse* (1958)
On Law and Justice (1959)
Review of *The Concept of Law* by H.L.A. Hart, *The Yale Law Journal* (1962)
The United Nations: Peace and Progress (1966)
Directives and Norms (1968)
"On Self-Reference and a Puzzle in Constitutional Law", *Mind* (1969)
On Guilt, Responsibility and Punishment (1975)

Against “formalism”

- What is formalism?
- Law as a self-contained system of rules
- Judges decide cases via deductive/syllogistic reasoning, applying general rules to the facts of the case (formalism in adjudication)
- This approach was also called ‘mechanical jurisprudence’
- Legal rules are like mathematical propositions – the law is a system of interconnected propositions which can be logically derived from each other, and which mechanically generate the result in all legal cases
- Judicial reasoning is independent from moral, political, economic, and social consideration

→ Is this what judges *really* do?

Some main realist claims

- The traditional idea of law as a system of rules is a myth
- Law in books is different from law in action (paper rules vs. real rules)
- The law (as a system of rules) is indeterminate
- General legal concepts/legal rules/propositions cannot decide concrete cases
- Judges (should) decide cases by making policy decisions
- Legal concepts and standards are not neutral/objective
- Rejection of “metaphysical nonsense”
- Legal institutions can (and should) be studied with the help of empirical sciences

→ Sociological jurisprudence?

Rule-scepticism

Conceptual rule-scepticism

- The (real) law should not be identified with “paper rules”
- Very pragmatic understanding of the law
- We are under a legal duty not do X if and only if the courts say so
- We are under a legal duty to not do X because it is likely to result in an adverse court ruling

Empirical rule-scepticism

- In deciding cases, judges respond to the underlying facts of the case, rather than to legal rules/reasons
- There are so many different legal rules that might be relevant to a particular case that there is always support for both sides in a legal argument
- There are conflicting ways of interpreting statutes and precedents

Realism about the nature of law

"The confusion with which I am dealing besets confessedly legal conceptions. Take the fundamental question, What constitutes the law? You will find some text writers telling you that it is something different from what is decided by the courts of Massachusetts or England, that it is a system of reason, that it is a deduction from principles of ethics or admitted axioms or what not, which may or may not coincide with the decisions. But **if we take the view of our friend the bad man we shall find that he does not care two straws for the axioms or deductions, but that he does want to know what the Massachusetts or English courts are likely to do in fact**. I am much of his mind. **The prophecies of what the courts will do in fact, and nothing more pretentious, are what I mean by the law**."

Oliver Wendell Holmes, 'The Path of the Law' (1897) 10(8) *Harvard Law Review*, 460-461

Realism about the nature of adjudication

- The realists were concerned to make their theory about adjudication consistent with scientific inquiry
  - Empirical, observational and positivistic (in the scientific sense, not the legal sense of positivism)
- The realists sought to formulate “laws of judicial behaviour” based on actual observations of what the courts do in particular cases
- Non-legal factors determine the outcome of judicial decision-making
  - Idiosyncratic adjudication (see, e.g., Frank)
  - Sociological adjudication (see, e.g., Llewellyn)
  - Pragmatic adjudication (see, e.g., Cohen)

Possible counterarguments

- Legal realism misses the fact that some of the participants in the social practice we call law take an internal point of view
- Legal realism makes it impossible to say that a court has made a mistake about the law
- Why should one give priority to the concerns of the ‘bad man’? Instead, it might be helpful to consider the perspective of the puzzled/ignorant person, who wishes to arrange their affairs according to law
- If there are no legal rules, how do we know who a judge is?
- Judges do make law in cases where the law is indeterminate, but not all legal questions are hard cases
- Even in hard cases, there is a correct legal answer
- Is the realist normative account of adjudication anti-democratic?

Hart on the generality of law

- Law, social control, and *general* rules/principles/standards
- The law predominantly refer to *classes* of person and to *classes* of acts, things, and circumstances
- Problem: to recognize particular acts, things, and circumstances as *instances of the general classifications which the law makes*

"**If it were not possible to communicate general standards of conduct, which multitudes of individuals could understand**, without further direction, as requiring from them certain conduct when occasion arose, **nothing that we now recognize as law could exist**."

H.L.A. Hart, *The Concept of Law* (OUP, 3rd ed, 2012) 124

Communication of general standards

- Two principal devices: legislation and precedent
  - Communication by explicit general forms of language: “Every man and boy must take off his hat entering a church”
  - Communication by example: “Look – this is the right way to behave on such occasions”

→ Is the latter more **indeterminate** than the former?

“Much of the jurisprudence of this century has consisted of the progressive realization (and sometimes the exaggeration) of the important fact that the distinction between the **uncertainties** of communication by **authoritative example** (precedent), and the **certainties** of communication by **authoritative general language** (legislation) is far less firm than this naïve contrast suggests.”

H.L.A. Hart, *The Concept of Law* (OUP, 3rd ed, 2012) 126

General rules and uncertainty

"…there is a limit, inherent in the nature of language, to the guidance which general language can provide. **There will indeed be plain cases constantly recurring in similar contexts to which general expressions are clearly applicable** ('If anything is a vehicle a motor-car is one') **but there will also be cases where it is not clear whether they apply or not**. ('Does "vehicle" used here include bicycles, airplanes, roller skates?')

H.L.A. Hart, *The Concept of Law* (OUP, 3rd ed, 2012) 126

- Without clear, familiar cases general terms would be useless
- When there are reasons for and against the use of a general term, **a choice between open alternatives** must be made

A fresh choice between open alternatives

- Natural languages are irreducibly **open-textured**

"…**uncertainty** at the borderline is the price to be paid for the use of general classifying terms in any form of communication concerning matters of fact."

H.L.A. Hart, *The Concept of Law* (OUP, 3rd ed, 2012) 128

- We are human beings, not gods

"**It is a feature of the human predicament** […] that we labour under two connected handicaps whenever we seek to regulate, unambiguously and in advance, some sphere of conduct by means of general standards…" (Ibid.)

- ➢ Our relative ignorance of fact
- ➢ Our relative ignorance of aim

Hart on legal indeterminacy

According to Hart, legal theory has either ignored or exaggerated the indeterminacies of legal rules

"…all systems […] **compromise between two social needs**: the need for certain rules which can, over great areas of conduct, safely be **applied by private individuals to themselves** without fresh official guidance or weighing up of social issues, and the need to leave open, for later settlement by **an informed, official choice**, issues which can only be properly appreciated and settled when they arise in a concrete case."

H.L.A. Hart, *The Concept of Law* (OUP, 3rd ed, 2012) 130

"Formalism and rule-scepticism are the Scylla and Charybdis of juristic theory; they are great exaggerations, salutary where they correct each other, and **the truth lies between them**" (Ibid, 147)

The Nightmare and the Noble Dream

- Hart discusses American Jurisprudence – “American speculative thought about the general nature of law”
- For Hart, one of the salient features of American jurisprudence is its “…a concentration, almost to the point of obsession, on the judicial process, that is, with what courts do and should do, how judges reason and should reason in deciding particular cases.” (see Oliver Wendell Holmes, John Chipman Gray, Karl Llewellyn, Louis L. Jaffe)
- “Quite extraordinary” role played by the courts – especially by the US Supreme Court – in America
- Political questions vs. Judicial questions
- Wide powers of judicial review vs. “the impartial application of determinate existing rules of law in the settlement of disputes”

The Nightmare

- Litigants in law cases consider themselves entitled to have from judges an application of the existing law to their disputes, not to have new law made for them
- Judges and legislators have different functions and different powers
- The Nightmare is that this image of the judge (as different from the legislator) is an illusion
- What Hart calls “the nightmare” has been presented by some legal scholars (see, in particular, American Legal Realism) not simply as a feature of certain types of difficult adjudication (e.g. constitutional adjudication), but an essential feature of law and adjudication

→ Are judges law-makers?

The Noble Dream

- Judges apply to their cases existing law – they don't make new law even when the text of particular constitutional provisions, statutes, or available precedents appears to offer no determinate guide
- According to Hart the Noble Dream in American jurisprudence (the notion that even when a particular provision of positive law is indeterminate there is none the less an existing law somewhere which judges can and should apply to dispose of the case) does not take the form of an invocation of a universal natural law
- For Hart, Dworkin is the noblest dreamer of all
- Even in the hardest of hard cases, where each of two alternative interpretations of a statute or two conflicting rules seems to fit equally well the already clearly established law, the judge is never to make law

Is Legal Realism a general theory of law?

Brian Leiter is Karl N. Llewellyn Professor of Jurisprudence; Director of the Center for Law, Philosophy, and Human Values, at the University of Chicago

In 'Legal Realism and Legal Positivism Reconsidered', Leiter challenges two widespread views:

(1) Legal Realism and Legal Positivism are incompatible

(2) Legal Realism is "a jurisprudential joke", "a philosophical mess"

According to Leiter, (1) and (2) above are connected because of H.L.A. Hart's critical analysis of legal realism in Chapter VII of *The Concept of Law*

→ Leiter argues that Hart wrongly construed Legal Realism as a theory of law (in competition with Legal Positivism)

Legal Realism as a descriptive theory of adjudication

- Judges react primarily to the underlying facts of the case
- Judicial decisions falls into discernible patterns (situation types)
- It is in light of these patterns that it is possible to make predictions
- Law is rationally indetermined
- If legal rules do not guide judges to particular solutions, then they cannot be used to explain judicial decisions
- What are the real (non-legal) reasons behind particular decisions?
- Empirical rule scepticism

Legal Realism and conceptual rule scepticism

- According to Leiter, legal realism is a descriptive theory of adjudication
- On the other hand, Legal Positivism is a general theory of law (characterised by the Social Thesis and the Separability thesis)
- According to Leiter, Hart has good arguments against **conceptual rule scepticism**, but no arguments against empirical rule scepticism
- “The Realists […] cannot be conceptual rule skeptics, because their arguments for the indeterminacy of law presuppose a nonskeptical account of the criteria of legality, one that has the most obvious affinities with that developed by hard or exclusive Positivists.” (293)

Legal Realism and Legal Positivism

According to Leiter, the relationship between Legal Realism and Legal Positivism has three main features:

- Both Realists and Positivists think that the law is indeterminate (but different understanding of its source and scope)
- **Realist arguments for indeterminacy seem to presuppose an essentially positivistic account of the criteria of legality**
- Realists and Positivists do disagree over how often legal rules matter in judicial decision making

→ The last point captures an empirical disagreement: do legal rules (the rules in books) play a causal role in judicial reasoning?

Critical Legal Studies

The Critical Legal Studies movement (CLS) offers a radical critique of:

- Law, seen as a coherent and neutral system of rules;
- Legal institutions; and
- Liberal legal values (e.g., the rule of law, the idea of rights, and the legal process)

→ For CLS, law is a contradictory and illegitimate system which maintains *oppressive* social relations

Intellectual influences: Legal Realism, Postmodernism, and Marxism

CLS and Legal Realism

- For both legal realists and CLS theorists, the law is indeterminate (hence, the law does not guide/constrain judicial reasoning)
- Following legal realism, CLS theorists see legal reasoning as a myth
- In comparison with Legal Realism, the CLS movement is more interested in the politics of law and the ideological nature of law
- Law mirrors different political visions and ideologies
- In comparison with Legal Realism, the CLS movement has a more radical understanding of legal indeterminacy
- Postmodernism → words do not have stable meaning

Postmodernism

- Jean-François Lyotard, *La condition postmoderne: rapport sur le savoir* (1979) [The Postmodern Condition: A Report on Knowledge]
- Post-structuralism (challenging the assumption that systems are self-sufficient structures and the possibility of the precise definitions on which systems of knowledge must be based)
- Jacques Derrida, Michel Foucault, Jean-François Lyotard, Jean Baudrillard, Richard Rorty…
- Anti-modernist and anti-foundationalist; rejection of epistemic certainty and the stability of meaning
- Use of concepts such as difference, repetition, the trace, the simulacrum, and hyperreality to destabilize other concepts such as presence, identity, historical progress, epistemic certainty, and the univocity of meaning

Against the “Enlightenment project”

- Immanuel Kant, *Beantwortung der Frage: Was ist Aufklärung?* (1784) [Answering the Question: What Is Enlightenment?“]
- The Enlightenment project is the ideology of liberal humanism that has dominated Western societies in modern times
- Are there objective and/or universal standards of truth and justice?
- Postmodernism rejects “grand narratives” (or “metanarratives”)
  - Human reasoning is always socially conditioned
  - Radical scepticism and relativism
  - The notion that language constitutes reality
  - Deconstruction (Derrida)

CLS and Marx's theory of history

- Marx's historical materialism
- Forces of production → relations of production
- The superstructure helps the dominant class to maintain certain relations of production
- Capitalism needs a legal system that legitimises private ownership (of the means of production)
- Yet, law present itself as a neutral, impartial instrument…
- For the CLS movement law and legal institutions serve the "dominant" class and maintain the status quo

CLS – some key claims

- Radical legal indeterminacy
- It is not possible to make coherent sense out of the legal materials
- The law is contradictory because it stems from political conflict
- Having said that, judicial decisions may be predicted because judges share a (political) commitment to the status quo
- Law as ideology
- The law promotes the interests of the powerful and legitimises injustice
- Scepticism about neutral legal concepts and doctrines